Appendix P
(Clause P1 of the *additional conditions of contract*)

Site Notice of Implementation of SOP Provisions in Relevant Subcontracts under the Main Contract

Main Contract No. : HY/2022/14

Main Contract Title: Modification Works of Noise Barriers along Yuen Long Highway near Park Signature

List of Relevant Subcontracts

The following Relevant Subcontracts have been reported to the *Client* and the Main Contractor as having incorporated the Security of Payment (SOP) Provisions:

Contract Title / Number	Name of Paying Party	Name of Subcontractor (undertaking works)
	e.g. Main Contractor	***e.g. ABC Subcontractor***
	e.g. Main Contractor	***e.g. DEF Subcontractor***
	e.g. DEF Sub-contractor	***e.g. XYZ Subcontractor***

SOP Clause 37 of SOP Provisions in Relevant Subcontracts:

Subcontractor's Rights to Suspend / Reduce Rate of Progress*

Each of the above-mentioned Subcontractors may suspend or reduce the rate of progress of the carrying out of the construction works or the supply of related goods or services under the Relevant Subcontracts if an amount admitted in a payment response as due or an adjudicated amount has not been paid on the due date specified in the relevant SOP Provisions and:

(1) the Subcontractor has served on his Paying Party a notice of intention that meets the requirements set out in the relevant SOP Provisions ("Notice");

(2) the Subcontractor has taken reasonable steps, at least 5 working days before the date on which he intends to start suspending, or reducing the rate of progress of, the construction works or the supply of related goods or services, to make the *Client* and the Main Contractor (as applicable) aware of the Notice (see *the **contact points** below*); and

(3) the amount due admitted by his Paying Party or the adjudicated amount is not paid in full within 5 working days after the said Notice.

***Note:** This notice is not a contract document and all rights and entitlements referenced herein are subject to the detailed terms and conditions of the Relevant Subcontracts.

SOP Clause 43 of SOP Provisions in Relevant Sub-contracts:

Direct Payment for Settlement of Unpaid Adjudicated Amount*

Each of the above-mentioned Subcontractors may apply to the *Client* for direct payment of any unpaid portion of an adjudicated amount pursuant to SOP Clause 43(3) in their subcontract (see *the* ***contact points*** *below*).

***Note:** This notice is not a contract document and all rights and entitlements referenced herein are subject to the detailed terms and conditions of the Relevant Subcontracts.

Contact Point(s) of the *Client* and the Main Contractor

Client (and his agent)	Principal Project Coordinator / Environmental Projects, Major Works Office (2), Major Works Project Management Office, Highways Department	Address: 6th Floor, Ho Man Tin Government Offices, 88 Chung Hau Street, Homantin, Kowloon, Hong Kong
Main Contractor	*[Project Director / Site Agent]*	*[address / email / phone]*

Issued by [name of the Main Contractor] on [date of issue].

有關在工務工程合約下的工程分包合約實行付款保障措施的告示

工務工程合約編號 : HY/2022/14

工務工程合約名稱: 元朗公路近溱柏段隔音屏障修訂工程

工程分包合約名單

有關合約方已向上述工務工程合約的業主和總承建商滙報，以下的相關工程分包合約已引入「 付款保障條款」:

分包合約的名稱 / 編號	分包合約的付款方	分包合約的承包商
	例如: 總承建商	*分包商甲*
	例如: 總承建商	*分包商乙*
	例如: 分包商乙	*分包商丙*

相關工程分包合約的「付款保障條款」第 37 款：

承包商因不獲付款而暫停 / 減慢履行工程分包合約責任的權利*

上述分包合約的各承包商，如在「付款保障條款」所訂定的付款限期前仍不獲支付已在「付款回應」獲確認為到期應付的款額 或 經審裁員裁定為應付的款額(“裁定款額”)，並合乎以下條件，可暫停或減慢施工(或提供相關物料或服務) 的進度:

(一) 承包商向不付款一方發出有意暫停或減慢施工進度的書面通知， 這項通知須合乎「付款保障條款」 所訂定的要求;

(二) 承包商須採取合理行動，於行使暫停或減慢施工進度的權利前最少 5 個工作天，讓業主和總承建商知悉上述的書面通知(參閱下述的聯絡資料); 及

(三) 在上述的 5 個工作天通知期內，仍不獲支付已在「付款回應」獲確認為到期應付的款額 或 裁定款額。

***註: 本告示並非相關工程分包合約的一部份， 承包商行使上述的權利時須留意相關工程分包合約的條款細則。**

相關工程分包合約的「付款保障條款」第 43 款：

直接支付被拖欠的裁定款額*

上述分包合約的各承包商，可依據其工程分包合約中的「付款保障條款」第 43(3)款，向業主申請直接支付被拖欠的裁定款額 (參閱下述的聯絡資料)。

***註: 本告示並非相關工程分包合約的一部份， 承包商行使上述的權利時須留意相關工程分包合約的條款細則。**

業主和總承建商的聯絡資料

業主 (及其代理人)	路政署 路政署主要工程管理處 主要工程辦事處 (2) 環境工程管理小組 工程管理組長/環境工程	地址: 九龍何文田忠孝街 88 號何文田政府合署六樓
總承建商	*[工程項目經理/地盤主管]*	*[地址/電郵/電話]*

此告示由[總承建商的名稱] 於[發出日期] 發出